



CHAPTER x.

An Act to confer further powers upon the Faversham Gas Company and for other purposes. A.D. 1903.
[30th June 1903.]

WHEREAS by the Faversham Gas Act 1889 (hereinafter called “the Act of 1889”) the Faversham Gas Company (hereinafter called “the Company”) were incorporated for the purpose of (amongst other things in the said Act mentioned) making and supplying gas to the places and within the limits in that Act defined :

And whereas it was by the Act of 1889 enacted that the capital of the Company should be forty thousand pounds consisting of capital stock to the amount of twenty-six thousand eight hundred and eighty pounds (hereinafter called “1889 original capital”) and such an amount of capital stock as should be sufficient to produce the sum of thirteen thousand one hundred and twenty pounds (hereinafter called “1889 additional capital”) and the Company were authorised to borrow on mortgage sums not exceeding in the aggregate the sum of ten thousand pounds :

And whereas the Company have created issued and expended the whole of the 1889 original capital and the whole of the 1889 additional capital with the exception of the sum of one pound of the 1889 additional capital and have borrowed and now owe the whole of the sum of ten thousand pounds authorised to be borrowed :

And whereas by section 61 of the Act of 1889 it was enacted as follows :—

“The standard price to be charged by the Company for gas supplied by them shall be—

“For gas supplied by them within a radius of two thousand two hundred yards from the centre of

A.D. 1903.

the existing gasworks at Faversham four shillings per one thousand cubic feet; and

“For gas supplied by them beyond that radius four shillings and sixpence per one thousand cubic feet :

“Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary stock as follows:—

“In respect of any year during which the price charged by the Company shall have been one penny or more above the standard price the dividend payable by the Company shall in respect of each penny by which the standard price shall have been increased be reduced below the standard rate of dividend by five shillings on every hundred pounds of ordinary paid-up capital and so in proportion for any fraction of one hundred pounds :

“And in respect of any year during which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate by five shillings on every hundred pounds of ordinary paid-up capital and so in proportion for any fraction of one hundred pounds ”:

And it is expedient that the said section should be amended and that other provisions should be enacted in lieu thereof :

And whereas the demand for gas within the Company's limits of supply is increasing and it is expedient that the Company be authorised to raise additional capital and to purchase additional lands and to manufacture and store gas on the lands described in the schedule to this Act in order to enable them to meet such increased demand :

And whereas it is expedient that the other provisions contained in this Act be made :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and

Commons in this present Parliament assembled and by the authority A.D. 1903.
of the same as follows (that is to say):—

1. This Act may be cited as the Faversham Gas Act 1903 and Short title.
the Act of 1889 and this Act may be cited together as the Faversham
Gas Acts 1889 and 1903.

2. The Gasworks Clauses Act 1847 ;

The clauses and provisions of the Companies Clauses Consoli- Incorpora-
dation Act 1845 with respect to the following matters (that is tion of
to say):— general Acts.

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing
the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the
shareholders ;

The borrowing of money by the Company on mortgage or
bond ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of
the right of voting by the shareholders ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special
Act by all parties interested ;

and Part I. (relating to cancellation and surrender of shares)
Part II. (relating to additional capital) and Part III. (relating to
debenture stock) of the Companies Clauses Act 1863 as amended
by subsequent Acts except section 56 (Power to convert loan into
capital) of the Companies Clauses Consolidation Act 1845 are (so
far as the same respectively are applicable for the purposes of and
are not varied by or inconsistent with the provisions of this Act)
incorporated with and form part of this Act :

And the Gasworks Clauses Act 1871 shall subject to the
provisions of this Act apply to the undertaking of the Company
as if the same had been authorised by this Act.

3. In this Act the several words and expressions to which Interpreta-
meanings are assigned by the Acts wholly or partially incor- tion.
porated herewith shall have the same respective meanings (unless
there be something in the subject or context repugnant to such
construction).

A.D. 1903.

Power to
Company to
raise addi-
tional capital.

4. The Company may from time to time raise additional capital not exceeding in the whole fifty-six thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any such share or stock vest in the person or corporation accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof :

Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of fifty-six thousand pounds :

Provided also that the Company shall not create and issue within the year following the passing of this Act any greater nominal amount of capital than shall be sufficient to produce in manner aforesaid seven thousand pounds or within any subsequent year two thousand pounds.

The additional capital in new shares or stock so created shall form part of the capital of the Company.

New stock to
be subject to
same inci-
dents as ex-
isting stock.

5. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital.

Profits of
Company
limited.

6. Except as by this Act provided the profits of the Company to be divided in any year among the holders of shares or stock in the additional capital by this Act authorised shall not exceed the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and the rate of six pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital.

Varying
illuminating
power stan-
dard price
and dividend.

7.—(1) On and after the first day of January one thousand nine hundred and four the prescribed illuminating power of the gas supplied by the Company shall be fourteen candles and the standard price of such gas shall be three shillings and elevenpence per thousand cubic feet for gas supplied by them within a radius of

two thousand two hundred yards from the centre of the existing gasworks at Faversham and four shillings and fivepence for one thousand cubic feet for gas supplied by them beyond that radius In making tests for illuminating power the gas shall be burned at such rate as to yield the maximum light for which the burner for the time being used in making such tests shall be designed. A.D. 1903.

(2) Section 61 (Standard price of gas with sliding scale as to dividend) and section 63 (Quality of gas) of the Act of 1889 are hereby amended as on and from the first day of January one thousand nine hundred and four so far as those sections are at variance with the provisions of this section.

8. The provisions of any former Act by which the mortgagees of the Company were empowered to enforce payment of principal and interest or principal or interest due on their mortgages by the appointment of a receiver are hereby repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under any such provision previously to the passing of this Act. Repeal of provisions of recited Act with respect to appointment of receiver.

9. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole. Appointment of a receiver.

10. Notwithstanding anything in this Act contained the Company shall when any shares or stock created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of New stock to be offered by auction or tender.

A.D. 1903. — tenders and not sooner And provided that no priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bid or offer by tender of any holder or holders of shares or stock in the Company be the same in amount as any bid or offer made by any other person the bid or offer of such holder or holders of shares or stock in the Company may be accepted in preference and preference may in like manner be given to any employee or gas consumer whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of shares or stock in the Company.

Stock not sold by auction or tender to be offered to holders of stock &c.

11. When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be offered at the reserved price put upon the same for the purpose of sale by auction or tender to the holders of ordinary shares or ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any shares or stock not so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act and the reserve put upon such stock may upon such second auction or tender if the directors of the Company think fit be less than the nominal amount thereof and any stock or shares not then sold shall be again offered to the holders of ordinary shares or ordinary stock at the last-mentioned reserved price and so from time to time until the whole of such shares or stock is sold.

Application of premium arising on issue of stock.

12. Any sum of money which shall arise from the issue of any such shares or stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend Provided that the premium received from the sale of shares or stock by auction or tender as hereinbefore provided shall for the purpose of determining the powers of the Company to raise money by borrowing or the amount which the Company may set aside as an insurance or reserve fund be reckoned as part of the paid-up capital.

Purchase money of capital sold to be paid within three months.

13. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

14. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the town clerk of any borough and to the clerk to the council of any urban or rural district into which any part of the limits of supply may extend and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of the Company for the supply of gas.

A.D. 1903.

Notice to be
given as to
sale of stock.

15. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power to
borrow.

16. The Company may create and issue debenture stock subject to the provisions of section 39 of the Act of 1889 Notice of the effect of that enactment shall be endorsed on all mortgages and certificates of debenture stock.

Debenture
stock.

17. All money raised or to be raised by the Company on mortgage or debenture stock under the provisions of any former Act relating to the Company or under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

Priority of
mortgages
and debenture
stock
over other
debts.

A.D. 1903.

Existing
mortgages to
have priority.

18. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

As to re-
ceipts for
interest on
debenture
stock stand-
ing in more
than one
name.

19. Where any debenture stock of the Company whether issued before or after the passing of this Act is registered in the names of more than one person as holders of any such debenture stock the receipt of any one of the registered holders of such debenture stock shall in the event of no notice to the contrary being served upon the Company from the other or others of such registered holders be a sufficient discharge to the Company for any interest payable in respect of such debenture stock the receipt whereof is acknowledged by such receipt.

Application
of moneys.

20. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable.

Powers as to
construction
and mainte-
nance of gas-
works &c.

21. Subject to the provisions of this Act the Company may upon the lands described in the Schedule to this Act erect maintain alter improve enlarge extend and renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of this Act and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas.

Power to
purchase
lands by
agreement.

22. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the Schedule to the Act of 1889 and the Schedule to this Act any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the Schedule to the Act of 1889 and the Schedule to this Act.

23. The Company may if they think fit allow discounts or rebates not exceeding in any case twenty per centum to consumers of gas in consideration of prompt payment of gas rents or of large consumption upon such scale and subject to such conditions and regulations as may be prescribed by the Company Provided that notice of the effect of this enactment shall be endorsed on every demand note for gas rent Provided further that such discounts or rebates shall be of equal amount under like circumstances to all consumers.

A.D. 1903.
Discounts.

24. If a person requiring a supply of gas from the Company have previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Power to re-
fuse supply
to persons
in debt for
other pro-
perty.

25. All the costs charges and expenses preliminary to and of and incident to the preparing applying for and the obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Expenses of
Act.

A.D. 1903.

The SCHEDULE hereinbefore referred to.

(A) Certain lands in the parish of Faversham in the county of Kent containing about one rood two perches belonging or reputed to belong to the Company which were conveyed to them by indenture dated twenty-fifth October one thousand eight hundred and ninety-seven between Henry John Cornelius and William Herbert Swan of the one part and the Company of the other part in which indenture the said lands are described as all that piece or parcel of land or ground commonly called or known by the name of the Ordnance Wharf situate lying and being in Faversham aforesaid abutting on the north-west to a road or way leading from West Street in the said town of Faversham to Davington in the said county of Kent and on all other sides to the Faversham Creek together with so much of the bridge or bridges and road lying on the north-west side thereof as was in and by certain indentures of the twenty-eighth and twenty-ninth October one thousand eight hundred and twenty-eight sold and conveyed with the said wharf by the principal officers of his then Majesty's Ordnance to Samuel Shepherd.

(B) Certain lands in that part of the parish of Preston next Faversham which is now known as North Preston Without in the county of Kent belonging or reputed to belong to the Company which were conveyed to them by an indenture dated thirtieth November one thousand eight hundred and ninety-nine between the Dean and Chapter of the Cathedral and Metropolitan Church of Christ Canterbury of the first part the Ecclesiastical Commissioners for England of the second part and the Faversham Gas Company of the third part in which indenture the said lands are described as all that piece of land containing by admeasurement four acres and two roods or thereabouts situate on the Creek in the parish of Preston next Faversham in the county of Kent and being parts of Nos. 29 and 31 on the map for the year one thousand eight hundred and ninety-seven of the Ordnance Survey for the said parish being Nos. 39 40 41 and 70 respectively on the tithe map for the said parish and which said piece of land is (with other hereditaments) now or was late in the occupation of Mr. George William Finn and the executors of the late Isaac Wildash.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C., or
OLIVER AND BOYD, EDINBURGH; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.